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JUDGMENT SHEET

IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN

JUDICIAL DEPARTMENT

Writ Petition No. 1735 of 2020

Qari Muhammad Arif

Vs.

Secretary Home Department etc.

JUDGMENT

Date of hearing	15.12.2020
Petitioner by:	Malik Muhammad Siddique Kamboh, Advocate.
Respondents by:	- Rana Muhammad Arif Kamal Noon, Prosecutor General, Punjab. - Mr. Muhammad Abdul Wadood, Additional Prosecutor General with Liaquat/SI. - Mehr Zameer Hussain, Deputy Attorney General for Pakistan. - Mr. Muhammad Siddique, Assistant Attorney General for Pakistan. - Mr. Muhammad Ayub Buzdar, Assistant Advocate General, Punjab. - Mr. Muhammad Amir Khattak, Deputy Commissioner, Multan.

“For the very idea that one man may be compelled to hold his life, or the means of living, or any material right essential to the enjoyment of life, at the mere will of another, seems to be intolerable in any country, where freedom prevails, as being the essence of slavery itself.”¹

Tariq Saleem Sheikh, J:- The Petitioner is a teacher by profession having settled in Tehsil Shujabad, District Multan. He is in government service for the last 22 years and is presently posted at the Government Elementary School, Railway Station, Shujabad. On 02-12-2014, vide Notification No. SO(IS-I)4-10/2011 (Multan), Respondent No.1 (the Secretary, Home Department, Punjab) notified his name for inclusion in the list maintained under the Fourth

¹ Saiyyed Abdul A’la Maudoodi and others v. The Government of West Pakistan and others (PLD 1964 SC 673).

Schedule of the Anti-Terrorism Act, 1997 (the “Act”), for three years. The Petitioner filed a review application in terms of section 11-EE(3) of the Act but that was dismissed *vide* Order dated 25-11-2016. After that period expired Respondent No.1 issued the impugned order dated 30-01-2018 for retention of his name on the aforesaid list for another three years. The Petitioner moved a review application against that order but the Proscription Review Committee did not decide it. Through this petition under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the “Constitution”), he seeks judicial review of the Government’s action and deletion of his name from the infamous list.

2. The Petitioner’s case is that Respondent No.1 has no jurisdiction to notify anybody’s name for the purposes of the Fourth Schedule as that power vests exclusively in the Federal Government. On facts, he submits that he is a law abiding citizen and has never been engaged in any sectarian or anti-State activity. He has no criminal history except case FIR No. 521/2018 dated 22-07-2018 registered at Police Station Shujabad for an offence under section 11-EE of the Act but even that has no legal consequence because he was found innocent during investigation. The Petitioner maintains that Respondent No.1 has no material against him which may justify the impugned order. Lastly, relying upon ***Hafiz Bilal Ahmad v. Station House Officer, Police Station 18-Hazari, Tehsil and District Jhang and 3 others*** (PLD 2011 Lah. 145), ***Khawaja Mureed Hussain v. Government of the Punjab, Home Department, Lahore and 6 others*** (2013 PCr.LJ 312) and ***Javed Iqbal v. Government of the Punjab through Home Secretary and another*** (2014 MLD 1308), he contends that the maximum period for which a person may be proscribed under section 11-EE of the Act is three years. The impugned order is illegal as it seeks to extend it for another three years.

3. We requisitioned report from Respondent No.4 (City Police Officer, Multan) which was received *vide* Diary No. 1694 dated 21-02-2020. According to him, the Petitioner is an activist of

Lashkar-e-Jhangvi (LeJ), a proscribed organization, and has been involved in three cases under section 11-EE of the Act (including FIR No. 521/2018 which the Petitioner has mentioned in his constitutional petition). The Home Department has issued the impugned order dated 30.1.2018 on the recommendation of the District Intelligence Committee (DIC), Multan, which is based on the reports of the law enforcement agencies.

4. We summoned Respondent No.2 (Deputy Commissioner/ Convener DIC, Multan) with a direction to produce the record of the DIC's relevant meeting to satisfy ourselves that its recommendation against the Petitioner is well-founded. On 6.10.2020, after hearing Respondent No.2 and going through the said record, we observed that this case involves substantial question as to interpretation of constitutional law so we issued notices to the Attorney General for Pakistan and the Advocate General, Punjab, in terms of Order XXVII-A CPC.

5. The learned Deputy Attorney General, Mehr Zameer Hussain, has vehemently opposed this petition. He contends that the Federal Government has delegated its powers and functions under section 11-EE of the Act to the respective Provincial Home Secretaries and the Chief Commissioner, Islamabad. As such, the objection relating to the jurisdiction of Respondent No.1 to proscribe the Petitioner is misconceived. He further contends that the Act is a valid legislation and the restrictions that it imposes on exercise of certain fundamental rights are reasonable and constitutional. He also controverts the Petitioner's contention that his name could not be notified again for the purpose of the list under the Fourth Schedule to the Act after the expiry of initial three years.

6. The learned Assistant Advocate General, Mr. Muhammad Ayub Buzdar, has also defended the impugned order. He contends that this constitutional petition is not maintainable as the Petitioner has an alternate remedy by way of a review application under section 11-EE(3) of the Act. On merits he contends that the

Petitioner has no case in the light of the report of Respondent No.4 and the record submitted by Respondent No.2.

7. Rana Muhammad Arif Kamal Noon, Prosecutor General, Punjab, has entered appearance with his team and argued on the same lines as the other two law officers.

8. Arguments heard. Record perused.

9. We first take up the objection relating to the jurisdiction of Respondent No.1. Sub-sections (1) & (1A) of section 11-EE of the Act are relevant to the issue so we reproduce them for ready reference:

11-EE. Proscription of person.—(1) The Federal Government may, be order published in the official Gazette, list a person as a proscribed person in the Fourth Schedule on an *ex-parte* basis, if there are reasonable grounds to believe that such person is—

- (a) concerned in terrorism;
- (b) an activist, office bearer or an associate of an organization kept under observation under section 11D or proscribed under section 11B; and
- (c) in any way concerned or suspected to be concerned with such organization or affiliated with any group or organization suspected to be involved in terrorism or sectarianism or acting on behalf of, or at the direction of, any person or organization proscribed under this Act.

Explanation—The opinion concerning reasonable grounds to believe may be formed on the basis of information received from any credible source, whether domestic or foreign including governmental and regulatory authorities, law enforcement agencies, financial intelligence units, banks and non-banking companies, and international institutions.

- (1A) The grounds shall be communicated to the proscribed persons within three days of the passing of the order of proscription.

10. Under section 11-EE the power to proscribe a person vests in the Federal Government but section 33 authorizes it to delegate the same to such authority as it may deem fit. Section 33 reads as follows:

33. Delegation—The Government may, by notification, delegate, subject to such conditions as may be specified therein, all or any of the powers exercisable by it under this Act.

Clause (i) of section 2 of the Act defines “Government” as:

(i) “Government” means the Federal Government or, as the case may be, the Provincial Government.

11. In exercise of the above-mentioned powers, *vide* SRO dated 29th October 2014, the Federal Government delegated the powers and functions under section 11-EE of the Act to respective Provincial Home Secretaries and the Chief Commissioner, Islamabad. Though another notification dated 24th August 2020 it authorized these functionaries, *inter alia*, to constitute Proscription Review Committees contemplated in the Act within their respective jurisdictions. These notifications are added to this judgment as Appendix I & II respectively.

12. In view of the foregoing, we hold that Respondent No.1 was competent to pass the impugned order dated 30-01-2018. The contention of the Petitioner’s learned counsel that he was not empowered is misconceived and, therefore, repelled.

13. The learned Assistant Advocate General’s objection to the maintainability of this constitutional petition is also not tenable. The Petitioner had a right of review under section 11-EE(3) of the Act. He filed an application before the Proscription Review Committee but it did not decide it. He could not be left without a remedy and was competent to approach this Court. Reference may usefully be made to the following observations of the Hon’ble Supreme Court of Pakistan in ***Faridsons Ltd. v. Govt. of Pakistan*** (PLD 1961 SC 537):

“Nevertheless, the argument was raised before us in bar of the issue of a writ, that an alternate remedy was possible by way of appeal, and that an appeal had been filed. An appeal was actually filed four years ago in each case, and no action has yet been taken on it. There is a limit to the patience the subject must exercise before he seeks alternative relief.”

14. Even otherwise, in cases involving enforcement of fundamental rights courts do not insist on strict adherence to the principle of alternate statutory remedy. Reliance is placed on ***Abu Bakar Muhammad Reza v. Secretary to Government of Punjab, Home Department and others*** (PLD 2005 Lah. 370), ***Hafiz Bilal***

Ahmad v. Station House Officer, Police Station 18-Hazari, Tehsil and District Jhang and 3 others (PLD 2011 Lah. 145), **Muhammad Mohsin Kulachi alias Gomi v. Government of Punjab and others** (2020 YLR 1327) and **Muhammad Irshad v. Government of the Punjab and others** (2020 PCr.LJ 206).

15. Here, we are also tempted to quote Justice Cornelius who said:²

“The writ jurisdiction of this Court has always been there and shall continue to come at the rescue of those citizens of this country who have no alternate and efficacious remedy available to them. It is one of the flowers of paradise ... God fulfills Himself in many ways and that we (Judges) are the humble instruments of His fulfillment. The writ jurisdiction is the modern manifestation of God’s pleasure and that God’s pleasure dwells in the High Court.”

16. An order of proscription entails serious consequences. Under section 11-EE(2) of the Act, the Government may require the person whose name has been listed in the Fourth Schedule to: (a) execute a bond with one or more sureties to the satisfaction of the District Police Officer concerned for his good behaviour and undertaking that he shall neither involve in any act of terrorism nor advance the objectives of any organization banned or kept under observation; (b) restrict his movements to any place or area and/or report to a designated officer at certain times or places; (c) refrain from visiting or going to certain public places. The Government may also direct probe into the assets of such person and his immediate family and monitor his activities for a period upto three years. Inasmuch as a proscription order syncopates a person’s fundamental rights guaranteed under Articles 9 & 15 of the Constitution, it can stand only if it meets the requisite criteria.

17. According to Wade & Forsyth,³ “administrative law needs consistent working definitions of the three primary constitutional functions, legislative, administrative and judicial; and

² Cited in *Muhammad Subtain Khan v. National Accountability Bureau through Chairman NAB and 3 others* (PLD 2020 Lahore 191) from *Chief Justice Cornelius of Pakistan*, Oxford (1999) p. 42-43, by Ralph Branbiti.

³ H.W.R. Wade & C.F. Forsyth, *Administrative Law*, Eleventh Edition, p. 31.

also of the hybrid ‘*quasi-judicial*’ function which has a part of its own to play.” They state:

“The one distinction which would seem to be workable is that between judicial and administrative functions. A judicial decision is made according to rules. An administrative decision is made according to administrative policy. A judge attempts to find what is the correct solution according to legal rules and principles. An administrator attempts to find what is the most expedient and desirable solution in the public interest. It is true, of course, that many decisions of the courts can be said to be made on grounds of legal policy and that the courts sometimes have to choose between alternative solutions with little else than the public interest to guide them. There will always be grey areas. Nevertheless the mental exercises of judge and administrator are fundamentally different. The judge's approach is objective, guided by his idea of the law. The administrator's approach is empirical, guided by expediency. Under this analysis, based on the nature of the functions, many so-called administrative tribunals, such as social security and employment tribunals, have judicial rather than administrative functions, since their sole task is to find facts and apply law objectively.

“A *quasi-judicial* function is an administrative function which the law requires to be exercised in some respects as if it were judicial. A typical example is a minister deciding whether or not to confirm a compulsory purchase order or to allow a planning appeal after a public inquiry. The decision itself is administrative, dictated by policy and expediency. But the procedure is subject to the principles of natural justice, which required the minister to act fairly towards the objectors and not (for example) to take fresh evidence without disclosing it to them. A *quasi-judicial* decision is therefore an administrative decision which is subject to some measure of judicial procedure. Since nowadays the great majority of administrative decisions which affect the rights or legal position of individuals are subject to the principles of natural justice in any case, the term *quasi-judicial* is now little used.”

18. De Smith explains *quasi-judicial* function as follows:⁴

“In administrative law this term may have any one of three meanings. It may describe a function that is partly judicial and partly administrative, e.g. the making of a compulsory purchase order (a discretionary or administrative act) preceded by the holding of a judicial-type local inquiry and the consideration of objections. It may, alternatively, describe the ‘judicial’ element in a composite function; holding an inquiry and considering objections in respect of a compulsory purchase order are thus ‘*quasi-judicial*’ acts. Or it may describe the nature of a discretionary act itself where the actor’s discretion is not unfettered. Seldom is it essential to use this ambiguous term, and it will be avoided here as far as possible.”

⁴ De Smith, *Judicial Review*, Sixth Edition.

19. Although it is sometimes difficult to make a distinction between an administrative authority's purely administrative and *quasi-judicial* acts, the "duty to act judicially" is the real test.⁵ But when does that duty arise? In ***R. v. Manchester Legal Aid Committee***, (1952) 1 All ER 480 (489), Parker J. observed: "the duty to act judicially may arise in widely different circumstances which it would be impossible and, indeed, inadvisable to attempt to define exhaustively." Nevertheless, where the statute itself requires the administrative authority to act judicially, there would be no doubt that its function is *quasi-judicial*.

20. The courts in England trace the development of the law on the subject from ***Cooper v. Wandsworth Board of Works***, (1863) 14 CB (NS) 180, but ***R. v. Electricity Commissioners and others***, [(1924) 1 KB 171], is considered to be the lodestar case in which Atkin, L.J. observed:

"The operation of the writs [of prohibition and certiorari] has extended to control the proceedings of bodies which do not claim to be, and would not be reorganized as Courts of Justice. Whenever any body of persons having legal authority to determine questions affecting the rights of subjects and having the duty to act judicially act in excess of their legal duty, they are subject to the controlling jurisdiction of the King's Bench Division exercised in these writs."

21. In ***R. v. Legislative Committee of the Church Assembly***, (1928) 1 KB 411 at 415, Lord Hewart CJ after quoting the above passage stated: "In order that a body may satisfy the required test it is not enough that it should have legal authority to determine questions affecting the rights of subjects; there must be superadded to that characteristic the further characteristic that the body has the duty to act judicially."

22. Scrutton L.J. observed in ***R. v. The London County Council*** (1931) 2 KB 215:

"There has been a great deal of discussion and a large number of cases extending the meaning of 'court'. It is not necessary that it should be a court in the sense in which this court is a court; it is

⁵ Justice C.K. Thakker, "*From Duty to Act Judicially to Duty to Act Fairly*", (2003) 4 SCC (Jour) 1.

enough if it is exercising, after hearing evidence, judicial functions in the sense that it has to decide on evidence between a proposed and an opposition; and it is not necessary to be strictly a court; if it is a tribunal which has to decide rights after hearing evidence and opposition, it is amenable to the writ of certiorari...”

23. Their Lordships of the Privy Council laid down in ***Nakkuda Ali v. M.F. De S. Jayaratne*** (PLD 1950 PC 102) that the only relevant criterion to determine whether an act is a judicial act “is not the general status of the person or body of persons by whom the impugned decision is made but the nature of the process by which he or they are empowered to arrive at their decision. When it is a judicial process or a process analogous to the judicial, certiorari can be granted.”

24. The House of Lords considered the above-mentioned cases and a host of others in ***Ridge v. Baldwin***, 1964 AC 40, and held that the process which affects the rights of people, including their right to property, should be exercised judicially and not ministerially and Atkin L.J. did not intend to “superadd” anything to it as Hewart CJ understood. Lord Reid pointed that “whenever a statutory authority is given power to determine questions affecting the rights of subjects, the duty to act judicial need not be expressly superimposed on that authority. It may be implied from the nature of the power conferred or the nature of the decision to be reached by the statutory authority.” ***Ridge v. Baldwin*** also extended the doctrine of natural justice (procedural fairness in judicial hearings) into the realm of administrative decision making.

25. In India, the seminal case on the subject is ***Province of Bombay v Kusaldas S. Advani and others*** (AIR 1950 SC 222). Kania C.J. observed:

“The word ‘*quasi-judicial*’ itself necessarily implies the existence of the judicial element in the process leading to the decision... [E]very decision of the executive generally is a decision of fact and in most cases affects the rights of someone or the other. Because an executive authority has to determine certain objective facts as a preliminary step to the discharge of an executive function, it does not follow that it must determine those facts judicially. When the executive authority has to form an opinion about an objective matter as a preliminary step to the exercise of a certain power

conferred on it, the determination of the objective fact and the exercise of the power based thereon are alike matters of an administrative character and are not amenable to the writ of *certiorari*.”⁶

In his opinion Das, J. further explained:

“(i) if a statute empowers an authority, not being a court in the ordinary sense, to decide disputes arising out of a claim made by one party under the statute which claim is opposed by another party and to determine the respective rights of the contesting parties who are opposed to each other there is a *lis* and *prima facie*, and in the absence of anything in the statute to the contrary, it is the duty of the authority to act judicially and the decision of the authority is a *quasi-judicial* act; and

(ii) if a statutory authority has power to do any act which will prejudicially affect the subject, then, although there are not two parties apart from the authority and the contest is between the authority proposing to do the act and the subject opposing it, the final determination of the authority will yet be a *quasi-judicial* act provided the authority is required by the statute to act judicially.”

26. Subha Rao J. of the Indian Supreme Court in his opinion in ***Gullapalli Nageswara Rao and others v. Andhra Pradesh State Road Transport Corporation and another*** (AIR 1959 SC 308) wrote:

“The concept of a *quasi-judicial* act implies that the act is not wholly judicial; it describes only a duty cast on the executive body or authority to conform to norms of judicial procedure in performing some acts in exercise of its executive power.”

27. In ***Anglo-American Direct Tea Trading Co. Ltd. v. Their Workmen and another*** (AIR 1963 SC 874) the Supreme Court of India held:

“Where an authority is required to act judicially either by an express provision of the statute under which it acts or by necessary implication of the said statute, the decisions of such an authority generally amount to *quasi-judicial* decisions. Where, however, the executive or administrative bodies are not required to act judicially and are competent to deal with issues referred to them administratively, their conclusions cannot be treated as *quasi-judicial* conclusions. No doubt, even while acting administratively, the authorities must act bona-fide; but that is different from saying that they must act judicially.”

28. In ***State of Orissa v. Dr. Binapani Dei and others*** (AIR 1967 SC 1269) the Supreme Court of India held:

⁶ The Supreme Court of Pakistan approvingly quoted this statement of law in *The Tariq Transport Company, Lahore v. The Sargodha-Bhera Bus Service, Sargodha and 2 others* (PLD 1958 SC (Pak) 437).

“Duty to act judicially would, therefore, arise from the very nature of the function intended to be performed; it need not be shown to be superadded. If there is power to decide and determine to the prejudice of a person, duty to act judicially is implicit in the exercise of such power.”

29. In ***A.K. Kraipak and others v. Union of India and others*** (AIR 1970 SC 150) the Indian Supreme Court observed:

“The dividing line between an administrative power and a *quasi-judicial* power is quite thin and being gradually obliterated. For determining whether a power is an administrative power or a *quasi-judicial* power one has to look to the nature of the power conferred, the person or persons on whom it is conferred, the framework of the law conferring that power, the consequences ensuing from the exercise of that power and the manner in which that power is expected to be exercised.”

30. The following principles have been settled in India on the law of *quasi-judicial* administrative acts:

- i) *Quasi-judicial* act has trappings of judicial functions.⁷
- ii) A *quasi-judicial* decision involves the following three elements:⁸
 - (a) It is in substance a determination, upon investigation, of a question by the application of objective standards to facts found in the light of pre-existing legal rules;
 - (b) It declares rights or imposes upon parties obligations affecting their civil right; and
 - (c) The investigation is subject to certain procedural attributes contemplating an opportunity of presenting its case to a party, ascertainment of facts by means of material if a dispute be on question of fact, and if the dispute be on question of law, on the presentation of legal argument, and a decision resulting in the disposal of the matter on landings based upon those questions of law and fact.
- iii) The question as to whether an act is a judicial or a *quasi-judicial* one or a purely executive act depends on the terms of the particular rules and the nature, scope and effect of the particular powers in exercise of which the act may be done and would, therefore, depend on the facts and circumstances of each case.⁹
- iv) Where (a) a statutory authority empowered under a statute to do any act (b) which would prejudicially affect the subject (c) although there is no *lis* or two contending parties and the contest is between the authority and the subject and (d) the statutory authority is required to act judicially under

⁷ *State of H.P. v. Raja Mahendra Pal and others* [(1999) 4 SCC 43]

⁸ *Jaswant Sugar Mills Ltd. Meerut v. Lakshmi Chand and others* (AIR 1963 SC 677)

⁹ *Province of Bombay v. Kusaldas S. Advani and others* (AIR 1950 SC 222)

the statute, the decision of the said authority is *quasi-judicial*.¹⁰

- v) Where the statute in question is silent as to the manner in which the power conferred should be exercised by the authority acting under it, the exercise of power will depend on the express provisions of the statute read along with the nature of rights affected, the manner of disposal provided, the objective criteria, if any, to be adopted, the effect of the decision on the persons affected and other indicia afforded by the statute. It would, therefore, be seen that where a statutory authority is given power to make a decision or perform an act which effects the rights of individuals or imposes obligations on them, the duty to act judicially need not be expressly super-imposed on the statutory authority: it may be inferred from the nature of the power conferred, its impact on the rights of citizens and such other relevant circumstances.¹¹
- vi) The duty to act judicially may not be expressly conferred but may be inferred from the provisions of the statute. It may be gathered from the cumulative effect of the nature of the rights affected, the manner of the disposal provided, the objective criterion to be adopted, the phraseology used, the nature of the power conferred, of the duty imposed on the authority and other indicia afforded by the statute.¹²
- vii) A decision would be *quasi-judicial* if it is in substance an objective determination of facts and law governing a case, and declares rights or imposes upon parties obligations affecting their civil rights and is arrived at after a statutory hearing of the parties.¹³

31. The Hon'ble Supreme Court of Pakistan had the occasion to consider the concept of judicial, *quasi-judicial* and administrative functions in ***The Tariq Transport Company, Lahore v. The Sargodha-Bhera Bus Service, Sargodha and 2 others*** [(PLD 1958 SC (Pak) 437]. It held that the distinction should be made on the character of action taken in a given case and the nature of the right on which it operates. The relevant excerpt is reproduced hereunder:

“The question whether an act is judicial, *quasi-judicial* or administrative is clouded by a confusion which it is extremely difficult to resolve and no clear-cut distinction between these three functions can be discovered from the large number of reported cases and the divergent opinion expressed therein. In modern states where expertise in the dominating features of government more

¹⁰ *Indian National Congress v. Institute of Social Welfare and others* [(2002) 5 SCC 685]

¹¹ *Sandhi Mamad Kala v. State of Gujarat* [(1973) 14 GLR 384]. It draws on *The Purtabpur Company Ltd. v. Cane Commissioner of Bihar and others* (AIR 1970 SC 1896) and *Board of High School and Intermediate Education, U.P. Allahabad v. Ghanshyam Das Gupta and others* (AIR 1962 SC 1110)

¹² *Dwarka Nath v. Income Tax Officer, Special Circle D-Ward, Kanpur and others* (AIR 1966 SC 81)

¹³ *Mrs. K.L. Sahgal v. State of U.P. and others* (AIR 1965 Allahabad 465)

than one function is combined in administrative tribunals, and more often than not an administrative agency discharges not only legislative or administrative but also judicial functions. The true question in the case of such tribunals always is whether the act which is complained of is a judicial act and not whether the procedure adopted by the tribunal is judicial or *quasi-judicial* or whether the dominate or general expect of the tribunal is that of a judicial, *quasi-judicial* or administrative body. A tribunal is not always furnished with the trappings of a court, nor will such trappings make its action judicial. The character of the action taken in a given case and the nature of the right on which it operates must determine whether that action is judicial, ministerial or legislative or whether it is simply the act of a public agent. A tribunal acts judicially in the full sense of the term if:

- (1) it has to determine a dispute;
- (2) the dispute relates to a right or liability which, whatever its immediate aspect, is ultimately referable to some right or liability, recognized by the constitution or statute or by custom or equity which by the domestic law is declared to be the rule of decision;
- (3) since every right or liability depends upon facts, the tribunal is under an obligation to discover the relevant facts;
- (4) the ascertainment of the facts is in the presence of the parties either of whom is entitled to produce evidence in support of its respective case and to question the truth of the evidence produced by his opponent; and
- (5) after an investigation of the facts and hearing legal arguments the tribunal renders a judgment which so far as the tribunal is concerned terminates the dispute.

“In the case of an administrative tribunal, however, the emphasis is on policy, expediency and discretion to enable it to achieve the object with which it was set up. In the case of such a tribunal the approach in determining the relevant facts is therefore often subjective and not objective, there being generally no *lis* before it in which the parties are arrayed against each other for the enforcement of a private right or liability and who for that purpose are entitled to produce evidence and adduced legal argument. The word ‘*quasi*’ as prefixed to the word ‘judicial’ may either indicate that the tribunal is not acting purely administratively or that it is acting in a manner in which a judicial tribunal is expected to act.”

The above view was reaffirmed in ***Faridsons Ltd. v. Govt. of Pakistan*** (PLD 1961 SC 537) and a catena of other cases.

32. In ***Dr. Zahid Javed v. Dr. Tahir Riaz Chaudhary and others*** (PLD 2016 SC 637), while examining the revisional powers of the chancellor under section 11-A of the University of the Punjab Act,

1973, the Hon'ble Supreme Court was called upon to consider whether that function was judicial or administrative. Amir Muslim Hani, J. wrote:

“The word ‘*quasi*’ is defined ‘as if’, as though, as it were, in a manner, in a certain sense or degree, seeming, seemingly, analogous to and it may mean resemblance. The *quasi-judicial* power is a duty conferred by words or by implication on an officer to look into facts and to act on them in the exercise of discretion, and it lies in the judgment and discretion of an officer other than a judicial officer. A ‘*quasi-judicial* power’ is one imposed on an officer or an authority involving the exercise of discretion, judicial in its nature, in connection with, and as incidental to, the administration of matters assigned or entrusted to such officer or authority.”

33. Similarly, in ***Younas Abbas and others v. Additional Sessions Judge, Chakwal and others*** (PLD 2016 SC 581), the Hon'ble Supreme Court of Pakistan held that the functions of Justice of Peace described in clauses (i), (ii) and (iii) of section 22-A(6) Cr.P.C., which required him to entertain applications, examine the record, hear the parties, pass orders and issue directions with due application of mind, were not executive, administrative or ministerial because he could not deal with the things mechanically. They were rather *quasi-judicial* as every *lis* before him demanded discretion and judgment. In holding so the Court dissented from ***Khizer Hayat and others v. Inspector-General of Police (Punjab), Lahore and others*** (PLD 2005 Lah. 470) and ***Muhammad Ali v. Additional I.G., Faisalabad and others*** (PLD 2014 SC 753).

34. The trend of latest authorities is that even where the authority performs pure administrative functions, it is required to act honestly and fairly. “The ‘duty to act fairly’ as the concept may be called, is an expansion of the principle of natural justice. It denotes an implied procedural obligation – the contents of which may fall considerably short of essential elements of a trial or a formal inquiry – accompanying the performance of a function that cannot, without overly straining linguistic usage, be characterized as judicial in nature.”¹⁴ In ***Nicholson v. Haldimand-Norfolk Regional Police***

14. Justice C.K. Thakker, “*From Duty to Act Judicially to Duty to Act fairly.*” [(2003) 4 SCC (Jour) 1].

Commissioners, [(1979) 1 S.C.R. 311], Bora Laskin, Chief Justice of the Supreme Court of Canada, observed:

“What rightly lies behind this emergence is the realization that the classification of statutory functions as judicial, *quasi-judicial* or administrative is often very difficult, to say the least; and to endow some with procedural protection while denying others any at all would work injustice when the results of statutory decisions raise the same serious consequences for those adversely affected, regardless of the classification of the function in question.”

35. There are a cornucopia of cases in the U.K. in which the courts have iterated that administrative authorities are obligated to *act fairly* in all matters coming up before them. In **R. v. Commission for Racial Equality ex. p. Hillingdon LBC**, (1982 AC 779), Lord Diplock said:

“Where an Act of Parliament confers upon an administrative body functions which involve its making decisions which affect to their detriment the rights of other persons or curtail their liberty to do as they please, there is a presumption that Parliament intended that the administrative body should act fairly towards those persons who will be affected by their decisions.”

Further reference may be made to **Re. K.(H) (an infant)**, [(1967) 1 All ER 226], **Schmidt and another v. Secretary of State for Home Affairs**, [(1969) 1 All ER 904], and **Pearlberg v. Varty (Inspector of Taxes)**, [(1972) 2 All ER 6].

36. The courts in India also frequently invoke the “act fairly” doctrine. In **Management of M/s Nally Bharatengg. Co. Ltd. v. State of Bihar & others** [(1990) 2 SCC 48], the Indian Supreme Court held:

“Fairness, in our opinion, is a fundamental principle of good administration. It is a rule to ensure the vast power in the modern State is not abused but properly exercised. The State power is used for proper and not for improper purposes. The authority is not misguided by extraneous or irrelevant considerations. Fairness is also a principle to ensure that statutory authority arrives at a just decision either in promoting the interest or affecting the rights of persons.”

37. In **Mary v. Stae of Kerala and others** (AIR 2014 SC 1)¹⁵ the Supreme Court of India held that the doctrine of fairness ensures rule of law. It said:

¹⁵ Also reported as 2014 SCMR 1728

“The doctrine of fairness is nothing but a duty to act fairly and reasonably. It is a doctrine developed in the administrative law field to ensure rule of law and to prevent failure of justice where an action is administrative in nature. Where the function is *quasi-judicial*, the doctrine of fairness is evolved to ensure fair action”

38. The concept of “duty to act fairly” is also well entrenched in our jurisprudence. In ***Shafaatullah Qureshi v. Federation of Pakistan*** (PLD 2001 SC 142), the Supreme Court of Pakistan held:

“Performance of *quasi-judicial* functions by itself does not convert an authority into court, whether an act is *quasi-judicial* or purely executive depends on the interpretation of rules/law under which the authority exercises its jurisdiction. It is true that the administrative authority also is to act bonafide, but it is different from saying that it must act judicially. Many authorities are not court, although they have to decide questions and have to act judicially in the sense that the proceedings shall be conducted with fairness and impartiality.”

39. Similarly, in *Suo moto* case reported as PLD 2011 SC 963 (***Re: Corruption in Hajj Arrangements in 2010***), the apex Court held:

“It is an unwritten rule of law, constitutional and administrative, that whenever a decision-making function is entrusted to the subjective satisfaction of a statutory functionary, there is an implicit obligation to apply his mind to pertinent and proximate matters only, eschewing the irrelevant and the remote.”

40. Again, in ***Abdul Wahab and another v. Secretary, Government of Balochistan and another*** [2011 PLC (C.S.) 1017], the Supreme Court said that “no one could be allowed, irrespective of who he is, to act in an arbitrary, fanciful and whimsical manner ... they should be judicious, fair and just in their decisions.”

41. In the instant case, the learned counsel for the Petitioner contends that Respondent No.1 exercises *quasi-judicial* function under section 11-EE of the Act. We are inclined to agree with him on the touchstone of the principles discussed above. The decision of Respondent No.1 to proscribe a person depends on determination of the facts mentioned in sub-section (1) of section 11-EE and imposes obligations affecting his fundamental rights. The provision for review against a proscription order by sub-section (3) of section 11-EE

fortifies the aforesaid view. The mere fact that there is no *lis* or two contending parties before Respondent No.1 would not take this case out of the realm of *quasi-judicial* functions as he had the duty to act judicially. Reference in this regard is made to ***Indian National Congress v. Institute of Social Welfare and others*** [(2002) 5 SCC 685] in which the Indian Supreme Court ruled that the Election Commission discharges *quasi-judicial* functions under section 29A of the Representation of the People Act, 1951. The Court approvingly cited ***R. v. Dublin Corporation***, (1878) 2 Ir. R. 371, which held:

“In this connection the term judicial does not necessarily mean acts of a Judge or legal tribunal sitting for the determination of matters of law, but for purpose of this question, a judicial act seems to be an act done by competent authority upon consideration of facts and circumstances and imposing liability or affecting the rights. And if there be a body empowered by law to enquire into facts, makes estimates to impose a rate on a district, it would seem to me that the acts of such a body involving such consequence would be judicial acts.”

42. We have noticed a contrary opinion in ***Muhammad Shakeel and others v. Government of Punjab through Home Secretary, Lahore and 3 others*** (PLD 2020 Lah. 629). With respect, we express our inability to follow the same because it draws on ***Khizer Hayat and others v. Inspector-General of Police (Punjab), Lahore and others*** (PLD 2005 Lah. 470) which was dissented on the point in issue by the august Supreme Court of Pakistan in ***Younas Abbas and others v. Additional Sessions Judge, Chakwal and others*** (PLD 2016 SC 581) as adumbrated in paragraph-33 of this judgment.

43. The phrase “*if there are reasonable grounds to believe*” in sub-section (1) of section 11-EE of the Act is also significant. The view of their Lordships of the Privy Council in ***Nakkuda Ali v. M. F. De S. Jayaratne*** (PLD 1950 PC 102), *supra*, was that the said expression does not oblige the authority to act judicially or even *quasi-judicially*. It only imposes a condition that there must, in fact exist reasonable grounds, known to the authority, before it can validly exercise the power conferred on it. However, in ***Malik Ghulam Jilani v. The Government of West Pakistan*** (PLD 1967 SC 373), which was a case relating to detention under the Defence of Pakistan Ordinance

(XXIII of 1965), a five-member Bench of the Hon'ble Supreme Court of Pakistan laid down that the aforementioned phrase connoted that the authority exercised a *quasi-judicial* function. Cornelius, CJ. wrote:

“The ascertainment of reasonable grounds is essentially a judicial or at least a *quasi-judicial* function. It is too late in the day to rely, as the High Court has done, on the dictum in the English case of *Liversidge* (L R 1942 A C 206) for the purpose of investing the detaining authority with complete power to be the judge of its own satisfaction. Public power is now exercised in Pakistan under the Constitution of 1962, of which Article 2 requires that every citizen shall be dealt with strictly in accordance with law. If then rule 32 owes its vires to section 3 (2)(x), it must follow that by the use of the words ‘reasonable grounds’ clause (x) has unmistakably imported into this rule, controlling the exercise of public power, the requirement that to gain the protection of the rule for its action thereunder, the authority should be prepared, to satisfy the Courts, to which the subject is entitled to have resort for determination of the question whether he has been treated in accordance with law, that it has acted on reasonable grounds.”

In his separate concurring opinion Yaquub Ali, J. held:

“Rule 32 thus falls within the ambit of the opening part of clause (x) of sub-section (2) of section 3 which confers conditional power on the detaining authority, namely, the existence of reasonable grounds on which his suspicion is based. It was argued that the use of the words ‘appearing to such authority to be reasonable’ in the clause indicates that the ascertainment of ‘reasonable grounds’ is not justiciable. There is little force in the contention. The detaining authority is expected to exercise the public power of apprehension and detention in accordance with law as enjoined by Article 2 of the Constitution [of 1962] and not arbitrarily or perversely. The more significant import of these words, however, is that the exercise of power by the detaining authority is subject to the ascertainment of reasonable grounds which is a *quasi-judicial* function.”

44. However, in ***Mir Abdul Baqi Baluch v. The Government of Pakistan*** (PLD 1968 SC 313), another case under Ordinance XXIII of 1965, a learned four-member Bench of the apex Court ruled that the orders of preventive detention “are made on consideration of policy and expediency. There can be no question of the detaining authority being under any obligation to act judicially or even *quasi-judicially*.” It appears that ***Abdul Baqi Baluch*** case does not depart from the ratio of ***Malik Ghulam Jilani***, supra, because Hamoodur Rehman, J. made these observations while considering the question whether it was a must for the authority to give show cause notice to the person concerned before making an order for his detention.

Nevertheless, even it was a different view, the earlier one would prevail and bind this Court as it is of a larger Bench.

45. The alternative argument that Respondent No.1 is obligated to act fairly in all circumstances also carries weight. He cannot act arbitrarily or on his whims. The aggrieved person is entitled to approach this Court for a declaration that unreasonable restrictions have been imposed on his freedom. Justice Thakker persuasively argues:¹⁶

“Though in UK, distinction has been made between procedural law and substantive law and it has been held that the doctrine of ‘acting fairly’ would apply only to the domain of procedure, in India ‘unfair procedure’ amounts to ‘arbitrary’ and ‘unreasonable’ exercise of power. Such act would attract Articles 14, 19 and even 21 of the [Indian] Constitution as interpreted in *State of W.B. v. Anwar Ali Sarkar* (AIR 1952 SC 75 : 1952 SCR 284), *S.G. Jaisinghani v. Union of India* [AIR 1967 SC 1427 : (1967) 2 SCR 703], *E.P. Royappa v. State of T.N.* [(1974) 4 SCC 3], *Maneka Gandhi v. Union of India* [(1978) 1 SCC 248].

“To the author, therefore, it is clear that ‘acting fairly’ is an additional weapon in the armoury of the court. It is not intended to be substituted for another much more powerful weapon ‘acting judicially’. Where, however, the former (‘acting judicially’) cannot be wielded, the court will try to reach injustice by taking resort to the latter-less powerful weapon (‘acting fairly’).”

46. It is trite that a statutory functionary must conform to the procedure prescribed in the enactment under which he purports to act.¹⁷ The phrase “if there are reasonable grounds to believe” occurring in section 11-EE of the Act is important for the additional reason that it constitutes a condition precedent for an order under that provision. The Act does not define this expression but section 26 PPC gives us a cue about what it connotes. It reads:

26. “Reason to believe”.—A person is said to have “reason to believe” a thing if he has sufficient cause to believe that thing but not otherwise.

47. Law evidently distinguishes between “reasonable suspicion” and “reasonable grounds to believe.” In *Shaaban bin Hussien and others v. Chong Fook Kam and another*, [1969] 3 All ER 1626 (PC), the Privy Council explained that “suspicion in its

¹⁶ Justice C.K. Thakker, “From duty to Act Judicially to Duty to act fairly”, (2003) 4 SCC (Jour) 1.

¹⁷ See, for example, *Faridsons Ltd. v. Govt. of Pakistan* (PLD 1961 SC 537)

ordinary meaning is a state of conjecture or surmise where proof is lacking; ‘I suspect but I cannot prove’.” On the other hand, in ***Hunter et al v. Southern Inc.***, [1984] 2 S.C.R. 145, the Supreme Court of Canada ruled that reasonable and probable grounds is “the point where credibly-based probability replaces suspicion.” ***Gurmakh Kang-Brown v. Her Majesty The Queen and another***, [2008] 1 S.C.R. 456, held that “less reliable information could justify reasonable suspicion, though not reasonable grounds to believe.”

48. The Indian Supreme Court dilated on the expression “reason to believe” given in the Indian Penal Code in ***Joti Parshad v. State of Haryana*** (AIR 1993 SC 1167) and ruled as under:

“Under the Indian penal law, guilt in respect of almost all the offences is fastened either on the ground of ‘intention’ or ‘knowledge’ or ‘reason to believe’. We are now concerned with the expressions ‘knowledge’ and ‘reason to believe’. ‘Knowledge’ is an awareness on the part of the person concerned indicating his state of mind. ‘Reason to believe’ is another facet of the state of mind. ‘Reason to believe’ is not the same thing as ‘suspicion’ or ‘doubt’ and mere seeing also cannot be equated to believing. ‘Reason to believe’ is a higher level of state of mind. Likewise ‘knowledge’ will be slightly on higher plane than ‘reason to believe’. A person can be supposed to know where there is a direct appeal to his senses and a person is presumed to have a reason to believe if he has sufficient cause to believe the same:

It further said:

“In substance person must have reason to believe if the circumstances are such that a reasonable man would, by probable reasoning, conclude or infer regarding the nature of the thing concerned. Such circumstances need not necessarily be capable of absolute conviction or inference; but it is sufficient if the circumstances are such creating a cause to believe by chain of probable reasoning leading to the conclusion or inference about the nature of the thing. These two requirements i.e. ‘knowledge’ and ‘reason to believe’, have to be deduced from various circumstances in the case.”

49. The Hon’ble Supreme Court of Pakistan considered the phrase “reasonable grounds” in ***Ch. Abdul Malik v. The State*** (PLD 1968 SC 349) and observed:

“ ‘Reasonable grounds’ is an expression which connotes that the grounds be such as would appeal to a reasonable man for connecting the accused with the crime with which he is charged, ‘grounds’ being a words of higher import than ‘suspicion’. However, strong a suspicion may be it would not take the place of

reasonable grounds. Grounds will have to be tested by reason for their acceptance or rejection.”

50. Again, in *Chaudhry Shujat Hussain v. The State* (1995 SCMR 1249), the apex Court held:

“The term ‘reason to believe’ can be classified at a higher pedestal than mere suspicion and allegation but not equivalent to proved evidence. Even the strongest suspicion cannot transform in ‘reason to believe.’”

51. The importance of distinguishing between “reasonable suspicion” and “reasonable grounds to believe” lies in the fact that they set different standards for judicial assessment of whether a legal threshold has been met in a particular case. In the former it suffices if the concerned person thinks that there is a possibility, which is, more than fanciful, that the relevant facts exists.¹⁸ On the other hand, the standard applicable to “reasonable grounds to believe” has both an objective and subjective facet. “The person concerned must not only subjectively believe that the standard has been met, but the grounds must be objectively justifiable in the sense that an ordinary prudent person in his place would conclude that there were indeed reasonable grounds.”¹⁹

52. Section 11-EE of the Act prescribes the “reasonable grounds to believe” standard to impose sanctions. Hence, in the light of the jurisprudence developed over time and the statutory safeguards provided by the legislature, the powers under that section are exercisable subject to the following conditions:

- i) An order of proscription can be made only if there are reasonable grounds to believe that person concerned falls within the ambit of section 11-EE(1) of the Act.
- ii) The competent authority must take into account all the relevant facts and circumstances to form an honest opinion whether an order of proscription is necessary. Such opinion may be formed on the basis of information received from any credible source, whether domestic or foreign, including governmental and regulatory authorities, law enforcement agencies, financial intelligence units, banks and non-banking companies, and international institutions.

¹⁸ *Da Silva v. Regina*, [2006] 4 All. ER 900

¹⁹ *R.V. Storrey*, [1990] 1 S.C.R. 241

- iii) If the information on which the authority relies to form the opinion is oral, it must show that it is authentic and not just a rumour.
- iv) There must be evidence to establish reasonableness which stands on a higher pedestal than mere suspicion.
- v) The grounds of proscription should be relevant to the aims and objects of the Act and the provisions of sub-section (1) of section 11-EE. An order made for extraneous considerations or in colourable exercise of power is not sustainable.
- vi) The order of proscription should not be vague. It must be perspicuous so that the person against whom it is made may file a review application provided by law.
- vii) The grounds of proscription should be communicated to the proscribed person within three days.
- viii) The court is competent to examine the vires of the order of proscription. The initial burden lies on the authority to show that it is legal.
- ix) The authority must place the entire material before the court on the basis of which it has passed the order of proscription. If it claims privilege in respect of any document, the court is the final arbiter.

53. In the instant case, on 02-12-2014 the Petitioner was proscribed for three years. After the expiry of that period Respondent No. 1 issued the impugned order dated 30-01-2018 for retention of his name in the Fourth Schedule list for another three years. There are two moot points:

- (a) Whether Respondent No. 1 was empowered to extend the period of the Petitioner's proscription beyond three years? and
- (b) Whether the impugned order meets the criteria described in the preceding paragraph and is enforceable?

54. Section 11-EE(2) of the Act, which details the consequences of proscription of a person, consists of six clauses. Out of them clause (a) stipulates that the proscribed person may be required to furnish a bond with one or more sureties for his good behaviour while the other clauses talk of restrictions that may be imposed on his movements and other ancillary matters. It is significant that only clause (a) contains a limitation. The other clauses are conspicuously silent about it. However, the Government assumes

that the three-year limit applies to all the incidents of proscription so an order under section 11-EE is generally made for three years. It is by now well settled that a departmental practice or interpretation of a particular provision unless contrary to law must be adopted and enforced. The learned Law Officers concede this legal position.

55. The case-law²⁰ cited by the learned counsel for the Petitioner is of little help to support his contention that a person's name cannot be retained on the list under the Fourth Schedule beyond three years because they are just *obiter*.

56. The Parliament has enacted the Act *inter alia* to prevent terrorism and sectarian violence. The miscreants change strategies, make new groups/alliances and draft new people. The law enforcement agencies monitor them and take counter measures. In some cases an enlistment in the Fourth Schedule suffices. It would be unreasonable and, in fact, contrary to the aims and objects of the Act to bound the government to a three-year limitation, particularly when the Parliament has not done it. Since section 11-EE has bearing on the citizen's fundamental rights, there should be sufficient material against the person concerned to justify extended monitoring of his activities. The onus on the Government to justify the extension is heavier than it is at the time of the initial order.

57. Now we turn to the second question. We have noticed that the order dated 30-01-2018 passed by Respondent No.1 proscribing the Petitioner is vague. He has only stated that "on the basis of information placed before me, it is apparent" that he is an activist of the SSP/LeJ, a proscribed organization. There are no more details. Such an order is not sustainable under the law because it does not show that there were actually any "reasonable grounds to believe" that an order under section 11-EE was, in fact, necessary. More importantly, it deprives the proscribed person of an opportunity to rebut the information/material being used against him.

²⁰ See paragraph 2, *supra*.

58. Respondent No.1 passed the impugned order ostensibly at the instance of the DIC, Multan. We called report from Respondent No. 4 (City Police Officer, Multan) but that was sketchy. Thereupon we directed the DIC's Convener, Respondent No. 2 (Deputy Commissioner), to produce the relevant record to satisfy ourselves whether there was sufficient material before the Committee to propose action against the Petitioner. To our surprise there are only stereotype reports of the agencies alleging that he has strong affiliation with the central leadership of the SSP/LeJ, attends their secret meetings and provides funds to the organization. It is also said that he was detained for 90 days *vide* Order No. G.B.-1-108/16.DO dated 13-01-2016 and has previously been involved in three cases under section 11-EE of the Act. There is no tangible evidence available on record to substantiate the allegation of the Petitioner's links with the SSP/LeJ and financing of terrorism. The mere fact that a person has criminal history is not sufficient to condemn him for life unless it is shown that he has not reformed himself and is still engaged in nefarious activities.

59. Article 4 of the Constitution ordains that every citizen, wherever he may be, and every other person for the time being within Pakistan, has an inalienable right to enjoy the protection of law and to be treated in accordance with law. In particular, no action detrimental to his life, liberty, body, reputation or property shall be taken except in accordance with law. In ***Government of West Pakistan and another v. Begum Agha Abdul Karim Shorish Kashmiri*** (PLD 1969 SC 14), the Hon'ble Supreme Court held that "an action which is *malafide* or colourable is not regarded as action in accordance with law. Similarly, action taken upon extraneous or irrelevant considerations is also not action in accordance with law. Action taken upon no ground at all or without proper application of the said of the detaining authority would also not qualify as action in accordance with law and would, therefore, have to be struck down as being action taken in an unlawful manner." The impugned order being illegal must, therefore, be quashed.

60. In view of the foregoing, this petition is **accepted**. The impugned order dated 30-01-2018 is declared to be without lawful authority and quashed. Respondent No. 1 is directed to de-proscribe the Petitioner and remove his name from the list under the Fourth Schedule of the Act. However, such de-proscription shall not bar him from invoking section 11-EE of the Act again and taking fresh action against him if it can be justified in terms of this judgment.

(Anwaarul Haq Pannun)
Judge

(Tariq Saleem Sheikh)
Judge

Approved for reporting

Judge

Judge

Appendix I & II

Naeem

PART -II
Statutory Notification (S.R.O)



Government of Pakistan
Ministry of Interior
National Crisis Management Cell
Islamabad

Islamabad, the 29th October, 2014

NOTIFICATION

S. R. O. (I)/2014. - In exercise of the powers conferred by section 33 of the Anti-Terrorism Act, 1997 (XXVII of 1997), the powers and functions of Federal Government as specified under section 11EE of the said Act are hereby delegated to respective Provincial Home Secretaries and Chief Commissioner, Islamabad Capital Territory.

No. 149/2014(Ops)-8205

[Signature] *P. Anis*

[Signature]
Deputy Secretary (Law) to
Government of Pakistan

TO BE PUBLISHED IN THE GAZETTE OF PAKISTAN
EXTRA-ORDINARY

GOVERNMENT OF PAKISTAN
MINISTRY OF INTERIOR

<><><><><>

Islamabad, the 24th August, 2020

NOTIFICATION

S.R.O. 778(I)/2020.- In exercise of the powers conferred by Section 33 of the Anti-Terrorism Act, 1997 (XXVII of 1997), the Federal Government is pleased to delegate to the Provincial Home Secretaries and the Chief Commissioner, Islamabad Capital Territory in their respective jurisdiction its powers exercisable under-

- (a) Section 11CC of the said Act to the extent of constituting a proscription review committee to decide review applications filed under section 11EE of the said Act;
- (b) Section 110 of the said Act; and
- (c) Section 1100 of the said Act.

No. 7/4/2020-FATF


(Muhammad Tahir Akbar Awan)
Section Officer (FATF)
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The Manager,
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4. The Home Secretary, Government of Balochistan, Quetta.
5. The Home Secretary, Government AJ & K, Muzaffarabad.
6. The Home Secretary, Government of Gilgit Baltistan, Gilgit.
7. The Chief Commissioner, ICT, Islamabad.


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